

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 1
Honorable Shella Deen, Presiding**

Nancy Vasquez, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 17, 2026 TIME: 9:00 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8.E**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

LINE 5	24CV440808	Edgar Daniel Rios Alvarez et al. v. Target Corporation et al.	Motion to Compel (Subpoena) Scroll down to Line 5 for Tentative Ruling.
LINE 6	25CV464930	Wells Fargo Bank, N.A. v. Jaideep S. Pada	Motion for Summary Judgment Plaintiff Wells Fargo's motion is unopposed. Plaintiff gave notice of the motion on February 11, 2026. Any opposition was due to be filed on August 28, 2026, and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rules of Court, Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.) Where a responding party does not file an opposition to a motion for summary judgment, the moving party must still meet its initial burden of proof. (<i>Thatcher v. Lucky Stores, Inc.</i> (2000) 79 Cal.App.4th 1081, 1086-1087, <i>CDF Firefighters v. Maldonado</i> (2008) 158 Cal.App.4th 1226, 1239, fn. 2). A motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subdivision (c)). Plaintiff has shown sufficient evidence to justify the grant of summary judgment in its favor; the motion for summary judgment is GRANTED. Plaintiff to prepare the formal order.
LINE 7	25CV477283	Shabana Pirani v. Comcast Cable Communications, LLC	Petition to Compel Arbitration Scroll down to Line 7 for Tentative Ruling.

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9:00 A.M.

Calendar Line 1

Case Name: *Myoung Jung Hwang v. Jikhan Jung et al.*

Case No.: 21CV387145

Before the court is defendant Jikhan Jung’s motion to dismiss for failure to bring action to trial within five years. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. Background.

On or about November 13, 2017, plaintiff Myoung Jung Hwang (“Hwang”) purchased 279,590 shares of defendant Subdream Studios, Inc. (“SSI”) pursuant to a Restricted Stock Purchase Agreement (“SPA”) by delivering to defendant SSI 52,640 shares of VR Plus Co., Ltd valued at \$588,498.36. (Complaint, ¶7 and Exh. A.)

Plaintiff Hwang purchased shares of defendant SSI in reliance on defendant Jikhan Jung’s (“Jung”) representation that large companies would invest in defendant SSI but no such large companies ever invested in defendant SSI. (Complaint, ¶8.)

Pursuant to the SPA, defendants were to provide plaintiff Hwang with regular financial reports for defendant SSI. (Complaint, ¶11.) Defendants abruptly stopped providing reports for the quarter ending on September 30, 2018. (*Id.*)

In March 2021, plaintiff Hwang sent a letter to defendants requesting to review the corporate records of defendant SSI, but defendant SSI did not respond to that request. (Complaint, ¶¶13 – 14.)

On August 11, 2021, plaintiff Hwang filed a complaint against defendants Jung and SSI asserting causes of action for:

- (1) Promissory Fraud
- (2) Breach of Fiduciary Duty
- (3) Breach of Contract
- (4) Breach of Covenant of Good Faith and Fair Dealing
- (5) Violation of California Corporations Code §1601 et seq.
- (6) Rescission
- (7) Unjust Enrichment